

Court No. - 32

Case :- WRIT - C No. - 306 of 2020

Petitioner :- Sarvare Alam

Respondent :- State Of U.P. And 5 Others

**Counsel for Petitioner :- Karuna Nand Tiwari,
Pawan Kumar Singh Kaushik**

**Counsel for Respondent :- C.S.C., Kapil Dev
Singh Rathore**

Hon'ble Shashi Kant Gupta,J.

Hon'ble Piyush Agrawal,J.

This writ petition has been filed, inter alia, for the following reliefs:

"(A) Issue a writ, order or direction in the nature of writ of certiorari for quashing the impugned demand notice 20.09.2013 issued by the respondent no. 3 and recovery proceeding initiated by respondent authorities for recovery of sum of Rs.341662/- (Annexure No. 4) to this writ petition.

(B) Issue a writ, order or direction in the nature of writ of mandamus commanding and directing the respondent authorities not to realise any amount in pursuant to the impugned demand notice and citation of appeal dated 22.12.2014 (Annexure No. 6) to this writ petition.

(C) Issue a writ, order or direction in the nature of writ of mandamus commanding and directing the respondent authorities not to adopt coercive method against the petitioner in pursuant of aforesaid recovery proceeding."

Heard learned counsel for the parties and perused the record.

Perusal of the record shows that the impugned demand notice was issued by the respondent no. 3 way back in the year 2013 but the present writ petition has been filed by the petitioner after more than six years.

Learned counsel for the petitioner has stated that he had been pursuing the matter before the Permanent Lok Adalat wherein his case was dismissed on 11.12.2018 as not maintainable.

Perusal of the record further shows that despite the aforesaid case was dismissed by the Permanent Lok Adalat on 11.12.2018, still the petitioner waited for more than one year in filing the present writ petition.

Learned counsel for the petitioner has not been able to explain the delay in filing the present writ petition. Moreover, the petitioner, in paragraph 22 of the writ petition has stated that he is unable to deposit the entire amount at once and wants to deposit the same in easy installment.

In case, the petitioner is ready to pay the entire amount in easy installment, he may approach the concerned Executive Engineer by way of an application with regard to payment in installments as provided under Paragraph 6.14 of the Electricity Supply Code, 2005.

With the aforesaid observation, this writ petition stands dismissed.

Order Date :- 7.1.2020

Arun